

Court No. - 40

Case :- WRIT - C No. - 7943 of 2023

Petitioner :- Preety Gautam

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Nitin Agarwal

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for the electricity department.

Present writ petition is preferred with request to issue direction to the respondents to give new electricity connection to the petitioner in rental premises at Satya Vihar, near Tayal Petrol Pump, Kotwali Road, Najibabad, District Bijnor within some stipulated period.

Learned counsel for the petitioner submits that the petitioner is resident of Satya Vihar, near Tayal Petrol Pump, Kotwali Road, Najibabad, District Bijnor. He applied for Commercial Electricity Connection of 2 Kilowatt on 15.1.2023 at her aforesaid rented premises. Petitioner is a tenant in the premises in question since last five years and is running a shop namely M/s Richers Home Furnishing.

Learned counsel for the respondents submits that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioner can pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the Executive Engineer, Electricity Distribution Division, Paschimanchal Vidyut Vitran Nigam Ltd., Najibabad District Bijnor (respondent no.3) to look into the grievance of the petitioner and redress the same in accordance with law within a period of three weeks from the date of production of certified copy of this order before him.

Order Date :- 22.3.2023

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